

face of a decree by a nunc pro tunc order. [Citation.] It cannot, however, change an order which has become final even though made in error, if in fact the order made was that intended to be made.” (*Estate of Eckstrom* (1960) 54 Cal.2d 540, 544.) In *Tokio Marine & Fire Ins. Corp. v. Western Pacific Roofing Corp.* (1999) 75 Cal.App.4th 110, the court elaborated on this point: “The test which distinguishes clerical error from possible judicial error is simply whether the challenged portion of the judgment was entered inadvertently (which is clerical error) versus advertently (which might be judicial error, but is not clerical error). [Citation.] Unless the challenged portion of the judgment was entered inadvertently, it cannot be changed post judgment under the guise of correction of clerical error.” (*Id.* at 117.)

Thus, the Court does not have unrestricted authority to reverse an order it intended to make but later determines to be erroneous. (*Bell v. Farmers Ins. Exchange* (2006) 135 Cal.App.4th 1138, 1144; see also *People v. McGee* (1991) 232 Cal.App.3d 620, 626.) The default judgment in this case accurately reflected the damages and credits presented at the time, and the asserted error arises solely from counsel’s misstatement of those amounts, not from any failure of the judgment to conform to the court’s intended result. Such error is not clerical within the meaning of section 473(d).

CCP section 473(a)(1) also does not provide authority to amend the judgment. Subdivision (a)(1) permits amendment of “any pleading or proceeding” in furtherance of justice, but that language does not reasonably encompass a final judgment. Judgments are addressed separately in subdivisions (b) and (d) of section 473, each of which authorizes post-judgment relief only in defined circumstances and subject to specific limitations.

III. Disposition

Plaintiff cites no authority holding that a court may amend or correct a judgment, *nunc pro tunc* or otherwise, under these circumstances. Therefore, the motion is **denied**.

Plaintiff shall file Order reflecting denial.

6. 9:00 AM CASE NUMBER: L25-00112
CASE NAME: LVNV FUNDING LLC VS. SHARA LUCIDO
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:

***TENTATIVE RULING**

Counsel for Defendant has filed a Motion to be Relieved as Counsel and has properly noticed the Defendant.

The Motion is unopposed.

Analysis

Under Rule 1.16(b) of the California Rules of Professional Conduct, an attorney can move to withdraw from representing a client if the client has made it unreasonably difficult for the attorney to effectively represent the client; or, the client breaches a material term of the agreement related to the representation.

In this matter, Counsel has alleged that the Defendant has not responded to numerous attempts to

communicate and has also failed to pay.

Disposition

The court grants Counsel's request to be relieved.

Counsel for Defendant shall file the Order.

7. 9:00 AM CASE NUMBER: L25-03269

CASE NAME: CAPITAL ONE N.A. VS. DOUGLAS LINARES

***HEARING ON MOTION FOR DISCOVERY TO DEEM MATTERS ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff filed, on December, 4, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). Plaintiff attached a proof of service.

Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.

No response has been filed by the Defendant.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Analysis

The court makes the following findings:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Attachment One to Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to prepare the Order.